Mention Case

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NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF CHENNAI BENCH, CHENNAI NATIONAL COMPANY LAW TRIBUNAL, HELD ON 24-03-2022 AT 10.30 A.M THROUGH VIDEO CONFERENCING:

PRESENT: JUSTICE (RETD.) SMT. S. RAMATHILAGAM, MEMBER (JUDICIAL)
SHRI B. ANIL KUMAR, MEMBER (TECHNICAL)

APPLICATION NUMBER	**: CP(CAA)/30CHE/2022**
PETITION NUMBER	**: IBA/243/2019**
NAME OF THE PETITIONER	**: Ramakrishnan Sadasivan (Liquidator) M/s Thiru Arooran Sugars Ltd**
NAME OF THE RESPONDENTS	**:**
UNDER SECTION	**: Sec 230-232 of CA, 2013**

1.] B.DHANARAJ - Counsel for petitioner - B. Dhanaraj

Mohammed Umar - Counsel for Petitioner -

ORDER

Learned Counsel for the Petitioner B. Dhanraj and Mohammed Umar present.

CP(CAA)/30/CHE/2022 is a Company Petition filed by the Petitioner viz., Ramakrishnan Sadasivan (Liquidator) for M/s. Thiru Arooran Sugars Ltd., which is coming up before us for admission and for fixing a date of hearing of the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the Composite Scheme of Arrangement (hereinafter for brevity referred to as "SCHEME") contemplated between the Petitioners and the Scheme proposed by M/s. KALS Distilleries Pvt. Ltd..

2. From the records, it is seen that the First Motion Application vide CA(CAA)/113/CHE/2021 was filed by the Petitioners seeking directions for convening, conducting and holding of the meeting of the Stakeholders Committee of the Company in Liquidation i.e. M/s Thiru Arooran Sugars Ltd. Based on such application moved under Sections 230-232 of the Companies Act, 2013, (the 'Act') the meetings of the Stakeholders Committee of the Company in Liquidation was ordered vide Order dated 07.06.2019.

3. Subsequent to the order and its due compliance, now this petition on second motion filed before this Tribunal is coming up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016,

brought into effect and on and from 01.04.2020 and it is now hereby ordered as follows:-

(i) The date of hearing of the Petition filed by the Petitioners for the sanction of the Scheme is fixed on **27th April, 2022**.

(ii) Notice of the hearing shall be advertised in the newspapers viz., the "Times of India" (English, All India edition) and "Daily Thanthi" (Tamil, Chennai edition) not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the above public notice, the Transferor Company shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through the office of the Regional Director (Southern Region), Ministry of Corporate Affairs (MCA) (b) Registrar of Companies, Chennai, MCA (c) Official Liquidator, (d) the Income Tax Department of the office having jurisdiction over the respective companies indicating specifically their PAN Nos. in the communication and other sectoral regulators, if any, who may govern the working of the respective companies involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith atleast 30 days before the date fixed for hearing.

(v) The Petitioners shall (7 days before the date of hearing of the Petition), file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

The next date of hearing of the Petition shall be on **27th April, 2022** for the consideration of the approval of the Scheme as contemplated among the Petitioner Companies.

-Sd-
B. ANIL KUMAR
MEMBER (TECHNICAL)

-Sd-
Justice (Retd.) S. RAMATHILAGAM
MEMBER (JUDICIAL)

Haripriya